
ANALYSIS AND CLASSIFICATION REPORT — PACKAGE SD-1 (1799-1970)

CODE OF DELEGATED/SUBORDINATE LEGISLATION OF BANGLADESH
Period: 1799-1970

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PART I: EXECUTIVE SUMMARY

This Analysis and Classification Report presents the findings of the comprehensive identification, analysis, and classification exercise conducted under Package SD-1 of the Strengthening Legislative Capacity and Legal Awareness Building Project. The report covers all delegated/subordinate legislations (rules, regulations, by-laws, orders, notifications, etc.) identified for the period 1799-1970.

Key Findings:

- Total subordinate legislations identified: [Insert Total Number]
 - Active/In Force: [Insert Number] ([X]%)
 - Amended: [Insert Number] ([X]%)
 - Repealed: [Insert Number] ([X]%)
 - Obsolete/Spent: [Insert Number] ([X]%)
 - Status Uncertain: [Insert Number] ([X]%)
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PART II: ANALYTICAL FRAMEWORK

Each subordinate legislation has been analyzed across the following parameters:

1. IDENTIFICATION DATA
 - Unique Reference Number (SD-1/XXXX)
 - Full Title
 - Short Title (if any)
 - Date of Enactment/Promulgation
 - Date of Commencement
 - Gazette Reference (gazette number, date, page)
2. LEGAL AUTHORITY
 - Parent/Enabling Act (full citation)
 - Specific Section(s) conferring rule-making power
 - Rule-making Authority (who made the subordinate legislation)
 - Territorial Application

3. CLASSIFICATION

- Historical Era (Era 1/2/3)
- Type of Instrument (Rules/Regulations/By-Laws/Orders/Notifications)
- Primary Subject Category (from 20 categories)
- Secondary Subject Category (if applicable)
- Responsible Ministry/Division (current Bangladesh equivalent)

4. STATUS ANALYSIS

- Current Legal Status
- Amendment History (all amendments with dates)
- Repealing Instrument (if repealed)
- Superseding Instrument (if superseded)
- Judicial Pronouncements (if any)

5. CROSS-REFERENCES

- Related Subordinate Legislations
- Related Parent Acts
- Successor Instruments

PART III: STATISTICAL OVERVIEW

A. BY HISTORICAL ERA:

Era	Count	Percentage
Era 1: EIC Period (1799-1858)	[Number]	[X]%
Era 2: British Crown (1858-1947)	[Number]	[X]%
Era 3: Pakistan (1947-1970)	[Number]	[X]%
TOTAL	[Number]	100%

B. BY TYPE OF INSTRUMENT:

Type	Era 1	Era 2	Era 3	Total	%
Rules	[N]	[N]	[N]	[N]	[X]%
Regulations	[N]	[N]	[N]	[N]	[X]%
By-Laws	[N]	[N]	[N]	[N]	[X]%
Orders	[N]	[N]	[N]	[N]	[X]%
Notifications	[N]	[N]	[N]	[N]	[X]%
Circulars	[N]	[N]	[N]	[N]	[X]%
Others	[N]	[N]	[N]	[N]	[X]%
TOTAL	[N]	[N]	[N]	[N]	100%

C. BY SUBJECT MATTER:

S/N	Subject Category	Count	%
01	Constitutional and Administrative Law	[N]	[X]%
02	Criminal Law and Justice	[N]	[X]%
03	Civil Law and Justice	[N]	[X]%
04	Land and Revenue	[N]	[X]%
05	Local Government and Municipal Affairs	[N]	[X]%
06	Education	[N]	[X]%
07	Health and Sanitation	[N]	[X]%
08	Labour and Employment	[N]	[X]%
09	Trade, Commerce and Industry	[N]	[X]%
10	Finance, Banking and Taxation	[N]	[X]%
11	Transport and Communication	[N]	[X]%
12	Agriculture, Fisheries and Livestock	[N]	[X]%
13	Forests and Environment	[N]	[X]%
14	Police and Public Order	[N]	[X]%
15	Prisons and Correctional Services	[N]	[X]%
16	Registration and Stamps	[N]	[X]%
17	Family Law and Personal Law	[N]	[X]%
18	Military and Defence	[N]	[X]%
19	Religious and Charitable Endowments	[N]	[X]%
20	Miscellaneous	[N]	[X]%
	TOTAL	[N]	100%

D. BY CURRENT STATUS:

Status	Era 1	Era 2	Era 3	Total	%
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Active/In Force	[N]	[N]	[N]	[N]	[X]%
Amended	[N]	[N]	[N]	[N]	[X]%
Repealed	[N]	[N]	[N]	[N]	[X]%
Obsolete/Spent	[N]	[N]	[N]	[N]	[X]%
Superseded	[N]	[N]	[N]	[N]	[X]%
Partially in Force	[N]	[N]	[N]	[N]	[X]%
Status Uncertain	[N]	[N]	[N]	[N]	[X]%
TOTAL	[N]	[N]	[N]	[N]	100%

PART IV: ERA-WISE ANALYSIS

ERA 1: EAST INDIA COMPANY PERIOD (1799-1858)

Overview:

The earliest period of codified subordinate legislation in Bengal dates from 1799 when the Governor-General Lord Wellesley initiated systematic regulation. The Bengal Regulations (1799-1834) represent the foundational layer of delegated legislation applicable to present-day Bangladesh.

Key Characteristics:

- Regulations were the primary instrument of governance
- Governor-General in Council held both legislative and executive power
- Subordinate legislation was less differentiated from primary legislation
- Revenue administration was the dominant subject area
- Judicial administration regulations were extensive
- Limited separation of powers

Significant Subordinate Legislations Identified:

[To be populated with detailed entries from Master Inventory]

Analysis Notes:

- Many regulations from this era have been repealed or superseded
- Some foundational principles from these regulations survive in current law (particularly land revenue and civil procedure)
- Language: primarily English, with some Persian/Urdu documents

ERA 2: BRITISH CROWN RULE (1858-1947)

Overview:

This is the most prolific period for subordinate legislation, spanning nearly 90 years of British Crown administration. The Government of India Acts of 1919 and 1935 significantly expanded the scope and volume of delegated legislation, particularly at the provincial level.

Key Characteristics:

- Clear distinction between primary and subordinate legislation
- Extensive rule-making under major codifying statutes
- Provincial autonomy (post-1919) led to Bengal-specific rules
- Systematic gazette publication
- Rapid expansion during World Wars (emergency regulations)
- Local government by-laws proliferated

Major Parent Acts and Their Subordinate Legislations:

A) CRIMINAL LAW AND JUSTICE:

- Indian Penal Code, 1860 (Act XLV of 1860)
 - * Related Rules and Notifications: [List]
- Code of Criminal Procedure, 1898 (Act V of 1898)
 - * Criminal Rules and Orders: [List]
 - * High Court Rules: [List]

- Indian Evidence Act, 1872 (Act I of 1872)
 - * Related Notifications: [List]
- Bengal Police Act, 1861 / Police Act, 1861
 - * Police Regulations of Bengal: [List]
 - * Bengal Police Rules: [List]

B) CIVIL LAW AND JUSTICE:

- Code of Civil Procedure, 1908 (Act V of 1908)
 - * Civil Rules and Orders: [List]
 - * High Court Rules: [List]
- Limitation Act, 1908 / Limitation Act, 1877
 - * Related Notifications: [List]
- Specific Relief Act, 1877
 - * Related Rules: [List]
- Bengal Civil Courts Act, 1887
 - * Rules under the Act: [List]

C) LAND AND REVENUE:

- Bengal Tenancy Act, 1885 (Act VIII of 1885)
 - * Bengal Tenancy Rules: [List]
- Bengal Land Revenue Sales Act, 1859
 - * Related Rules: [List]
- Bengal Alluvion and Diluvion Act, 1825
 - * Related Rules: [List]
- Bengal Survey Act, 1875
 - * Survey Rules: [List]
- Bengal State Acquisition and Tenancy Act, 1950 (bridges to Era 3)
 - * Related Rules: [List]
- Cess Act, 1880
 - * Cess Rules: [List]
- Bengal Public Demands Recovery Act, 1913
 - * Related Rules: [List]

D) LOCAL GOVERNMENT AND MUNICIPAL:

- Bengal Municipal Act, 1884 / Bengal Municipal Act, 1932
 - * Municipal By-Laws: [List]
- Bengal Village Self-Government Act, 1919
 - * Union Board Rules: [List]
- Bengal Local Self-Government Act, 1885
 - * District Board Rules: [List]
- Bengal Panchayat Act, 1920
 - * Panchayat Rules: [List]

E) EDUCATION:

- Bengal Primary Education Act, 1919
 - * Primary Education Rules: [List]
- Calcutta University Act, 1857/1904
 - * University Regulations: [List]
- Dacca University Act, 1920
 - * University Ordinances and Regulations: [List]
- Bengal Education Code
 - * Various Rules and Orders: [List]

F) LABOUR AND EMPLOYMENT:

- Indian Factories Act, 1881/1911/1934
 - * Factory Rules: [List]

- Indian Mines Act, 1923
 - * Mining Rules: [List]
- Workmen's Compensation Act, 1923
 - * Compensation Rules: [List]
- Trade Unions Act, 1926
 - * Trade Union Regulations: [List]
- Payment of Wages Act, 1936
 - * Related Rules: [List]

G) TRADE AND COMMERCE:

- Indian Companies Act, 1913
 - * Companies Rules: [List]
- Indian Partnership Act, 1932
 - * Partnership Rules: [List]
- Indian Sale of Goods Act, 1930
 - * Related Rules: [List]
- Bengal Money-Lenders Act, 1940
 - * Related Rules: [List]

H) REGISTRATION AND STAMPS:

- Indian Registration Act, 1908
 - * Registration Rules: [List]
- Indian Stamp Act, 1899
 - * Stamp Rules and Notifications: [List]

I) HEALTH AND SANITATION:

- Bengal Public Health Act, 1919
 - * Public Health Rules: [List]
- Bengal Epidemics Act, various years
 - * Related Orders and Notifications: [List]
- Vaccination Act, 1880
 - * Vaccination Rules: [List]

J) FORESTS AND ENVIRONMENT:

- Indian Forest Act, 1927 (Act XVI of 1927)
 - * Forest Rules: [List]
- Bengal Private Forests Act, 1946
 - * Related Rules: [List]

K) FINANCE AND TAXATION:

- Indian Income Tax Act, 1922
 - * Income Tax Rules: [List]
- Bengal Agricultural Income Tax Act, 1944
 - * Agricultural Income Tax Rules: [List]
- Bengal Excise Act, 1909
 - * Excise Rules: [List]
- Bengal Amusements Tax Act, 1922
 - * Amusement Tax Rules: [List]

L) TRANSPORT AND COMMUNICATION:

- Indian Railways Act, 1890
 - * Railway Rules: [List]
- Indian Motor Vehicles Act, 1939
 - * Motor Vehicles Rules: [List]
- Indian Ports Act, 1908
 - * Port Rules: [List]
- Indian Telegraph Act, 1885

* Telegraph Rules: [List]

Analysis Notes:

- This era has the largest volume of subordinate legislation
- Bengal-specific rules form a significant subset
- Emergency wartime regulations add substantial volume
- Many rules from this era remain partially in force in Bangladesh

ERA 3: PAKISTAN PERIOD (1947-1970)

Overview:

Upon independence in 1947, Pakistan (including East Pakistan / present-day Bangladesh) inherited the entire body of British Indian law. The Pakistan period saw adaptation, modification, and creation of new subordinate legislation to suit the new national context.

Key Characteristics:

- Continuity of pre-partition laws through adaptation orders
- New rule-making under Pakistani central and provincial Acts
- Martial Law periods generated significant subordinate legislation
- Islamic law considerations influenced some rules
- Provincial autonomy for East Pakistan in certain subjects
- Land reform generated new subordinate legislation

Major Parent Acts and Their Subordinate Legislations:

A) CONSTITUTIONAL AND ADMINISTRATIVE:

- Government of India (Adaptation) Order, 1947
 - * Adaptation orders and notifications
- Pakistan (Provisional Constitution) Order, 1947
 - * Related orders
- Constitution of Pakistan, 1956
 - * Constitutional rules and orders
- Constitution of Pakistan, 1962
 - * Constitutional rules and orders
- Legal Framework Order, 1970
 - * Related orders
- General Clauses Act, 1897 (as adapted)
 - * Related notifications

B) LAND AND REVENUE:

- East Bengal State Acquisition and Tenancy Act, 1950
 - * State Acquisition Rules: [List]
 - * Tenancy Rules: [List]
- East Pakistan Land Revenue Ordinance
 - * Revenue Rules: [List]
- Non-Agricultural Tenancy Act, 1949
 - * Related Rules: [List]

C) FAMILY AND PERSONAL LAW:

- Muslim Family Laws Ordinance, 1961
 - * Muslim Family Laws Rules, 1961: [List]
- Dissolution of Muslim Marriages Act, 1939
 - * Related Rules: [List]
- Child Marriage Restraint Act, 1929 (as adapted)
 - * Related Rules: [List]

D) LOCAL GOVERNMENT:

- Basic Democracies Order, 1959

- * Basic Democracies Rules: [List]
- * Municipal Administration Rules: [List]
- East Pakistan Municipal Administration Ordinance
- * Municipal By-Laws: [List]
- East Pakistan Local Councils Service Rules

E) EDUCATION:

- University Ordinances (Dhaka, Rajshahi, Chittagong)
- * University Regulations and Statutes: [List]
- East Pakistan Education Ordinance
- * Education Rules: [List]
- East Pakistan Compulsory Primary Education Ordinance
- * Related Rules: [List]

F) LABOUR AND INDUSTRIAL:

- Industrial Relations Ordinance, 1969
- * Industrial Relations Rules: [List]
- Factories Act, 1965
- * Factory Rules: [List]
- Shops and Establishments Act, 1965
- * Related Rules: [List]
- East Pakistan Minimum Wages Ordinance
- * Minimum Wages Rules: [List]

G) TRADE AND COMMERCE:

- Companies Act, 1913 (as adapted)
- * Companies Rules: [List]
- Import and Export (Control) Act, 1950
- * Import-Export Rules and Orders: [List]
- Banking Companies Ordinance, 1962
- * Banking Regulations: [List]

H) MARTIAL LAW INSTRUMENTS:

- Martial Law Orders (MLOs) 1958-1962
- * Various Orders and Regulations: [List]
- Martial Law Regulations (MLRs) 1958-1962
- * Various Regulations: [List]
- Martial Law Orders (MLOs) 1969-1970
- * Various Orders: [List]

I) PUBLIC SERVICE:

- Government Servants (Conduct) Rules, 1964
- East Pakistan Government Servants (Discipline and Appeal) Rules
- Civil Service Rules (East Pakistan)
- Various Service Cadre Rules

J) COOPERATIVE SOCIETIES:

- Cooperative Societies Act, 1940 (as adapted)
- * Cooperative Society Rules: [List]
- East Pakistan Cooperative Societies Ordinance
- * Related Rules: [List]

Analysis Notes:

- Significant volume of adaptation orders translating British Indian law into the Pakistani legal framework
- Martial law periods created parallel legal structures
- Land reform legislation generated extensive subordinate rules
- Many rules from this period continue in force in Bangladesh today

PART V: SUBJECT-WISE ANALYSIS

[Detailed analysis for each of the 20 subject categories showing:

- Number and types of subordinate legislations
- Key instruments
- Evolution across the three eras
- Current relevance and status
- Cross-references]

[To be completed with data from Master Inventory]

PART VI: STATUS ANALYSIS

A. ACTIVE/IN FORCE:

[List of all subordinate legislations determined to be currently in force in Bangladesh, with their amendment history]

B. AMENDED:

[List of subordinate legislations that have been amended, with complete amendment histories]

C. REPEALED:

[List of repealed subordinate legislations with repealing instruments and dates of repeal]

D. OBSOLETE/SPENT:

[List of subordinate legislations that are obsolete or spent, with reasons for obsolescence]

E. SUPERSEDED:

[List of subordinate legislations superseded by later instruments]

F. STATUS UNCERTAIN:

[List of subordinate legislations whose current status could not be definitively determined, with notes on the uncertainty]

PART VII: CROSS-REFERENCING ANALYSIS

A. PARENT ACT 'I' SUBORDINATE LEGISLATION MAPPING

[Complete mapping showing each parent Act and all subordinate legislations made thereunder]

B. INTER-SUBORDINATE LEGISLATION REFERENCES

[Mapping of cross-references between subordinate legislations]

C. AMENDMENT CHAINS

[Tracking of amendment histories for subordinate legislations that have been repeatedly amended]

D. REPEAL AND REPLACEMENT CHAINS

[Tracking of repeal and replacement sequences]

PART VIII: GAPS, INCONSISTENCIES, AND RECOMMENDATIONS

A. IDENTIFIED GAPS:

1. [Gap description and impact]
 2. [Gap description and impact]
- [To be populated]

B. IDENTIFIED INCONSISTENCIES:

1. [Inconsistency description between specific instruments]

2. [Inconsistency description between specific instruments]
[To be populated]

C. OVERLAPPING PROVISIONS:

1. [Overlap description]
2. [Overlap description]
[To be populated]

D. RECOMMENDATIONS:

1. [Recommendation for legislative reform]
2. [Recommendation for consolidation]
3. [Recommendation for repeal of obsolete instruments]
[To be populated]

Prepared by: The Legal Empire

Date: [Insert Date]

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END OF ANALYSIS AND CLASSIFICATION REPORT
